

**IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF NORTH CAROLINA**

25-SO-1

IN RE:)
PROCEDURES FOR ACCESS AND)
MANAGEMENT OF SEALED)
DOCUMENTS)
)

FILED

SEP 24 2025

PETER A. MOORE, JR., CLERK
US DISTRICT COURT, EDNC
BY WSC DEP CLK

WHEREAS recent cyberattacks on the CM/ECF systems of federal courts require the implementation of new procedures for the storage and management of sealed documents;

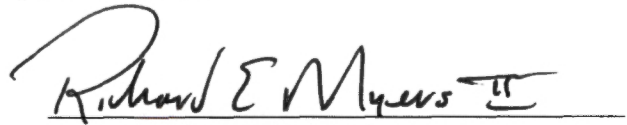
IT IS HEREBY ORDERED that, effective as of the date of this order and until such time as the court orders otherwise,

1. **Definition of Sealed Documents.** The term “sealed documents” as used in this Order includes both sealed and restricted access documents that are not available through public terminal access.
2. **Electronic Access to Sealed Documents.** Sealed documents will continue to be filed in CM/ECF under existing procedures including Local Civil Rule 79.2, Local Criminal 55.2, and the *Electronic Case Filing Administrative Policies and Procedures Manual*. Sealed documents, however, will no longer be accessible or viewable by electronic means.
3. **Service of Sealed Documents Filed in CM/ECF.** Because sealed documents filed in CM/ECF will no longer be accessible or viewable electronically, service cannot be accomplished through CM/ECF. Parties will have to serve sealed documents by other appropriate means as provided by the Federal Rules of Procedure. The court will serve sealed documents in paper by mail.
4. **Additional Copies of Sealed Documents.** Because sealed documents filed in CM/ECF will no longer be accessible or viewable electronically, a party or non-party with the right to access a sealed document in a case who requires a copy of a sealed document must contact the clerk’s office to request a paper copy. Applicable copy fees set forth in the District Court Miscellaneous Fee Schedule will be applied to such requests.
5. **Highly Sensitive Documents (HSDs).** Sealed documents that are defined as HSDs will continue to be subject to the court’s HSD procedures as set forth in Standing Order 24-SO-1, In re: Procedures for the Filing, Service, and Management of Highly Sensitive Documents.

6. **Probation Documents.** Any sealed document filed by the United States Probation Office will be served by that office on an applicable party outside of CM/ECF. The deadlines set forth in Local Criminal Rule 32.2 will continue to apply, and parties' objections or responses to a presentence investigation report will be filed in CM/ECF but must be served by a party outside of CM/ECF.
7. **Questions about Sealed Document Procedures.** Any questions about the filing of and access to sealed documents should be directed to the clerk's office at 919-645-1700.

This Order supersedes any and all inconsistent local rules, standing orders, and provisions in the *Electronic Case Filing Administrative Policies and Procedures Manual*.

IT IS SO ORDERED, this 24th day of September, 2025.

A handwritten signature in black ink, reading "Richard E. Myers II", is written over a horizontal line.

RICHARD E. MYERS II

Chief United States District Judge